

**Revised sections of the
Procedures for the management of grievances related to reconstruction 2017 (2074)**

10. Rural Municipality/Municipality Grievances Management Committee: (1) The Rural Municipality/Municipality grievances management committee shall be formed as per below:

- | | |
|--|---------------------|
| (a) Chair, Rural Municipality/Municipality | - Coordinator |
| (b) Deputy Chair, Rural Municipality/Municipality | -Deputy Coordinator |
| (c) NRA Engineer deployed in Rural Municipality/Municipality | -Member |
| (d) Chief of the nearby Nepal Police Unit | -Member |
| (e) Executive Officer, Rural Municipality/Municipality | -Member Secretary |

(2) Other individuals or officials related to grievances management can be invited in the grievances management committee meeting on need basis.

(3) The Deputy Coordinator will chair the meeting in absence of the Coordinator.

(4) The Secretariat of the Rural Municipality/Municipality grievances management committee will be established at the office of the Rural Municipality/Municipality.

(5) The tasks, responsibilities and authority of the Member Secretary of the Rural Municipality/Municipality grievances management committee shall be as following:

- (a) To keep a record of the grievances that are registered in the Rural Municipality/Municipality, wards and/or those sourced from other agencies,
- (b) To categorize and sort the grievances that have been received,
- (c) To present the categorized grievances at the Rural Municipality/Municipality grievances management committee meeting,
- (d) To execute or cause to be executed the decisions made by the grievances management committee meeting.

(6) The tasks, responsibilities and authority of the Rural Municipality/Municipality Grievances Management Committee shall be as per below:

- (a) Those household families that have been legally partitioned before the 25 April 2015 earthquake and whose names have been included separately in the beneficiaries list shall be eligible for the housing cash grant. However, even if the partition has not been approved by the government body, and yet the families have been living separately in separate houses before the 25 April 2015 earthquake, and the families have been included in the beneficiaries list, such families shall be considered as separate households if it is proven based on the public inquiry deed that the families were indeed living separately.
- (b) For those families with damaged houses who were residing in public land, government land, forest land and other kinds of lands like *guthi*, lands that fall under *guthi* or *birta*, lands co-owned by tenant farmers, *swabasi*, *benissa*, village block, city block, *kodali*,

aankada, bitauri, ukhada, approval for the housing reconstruction agreement shall be issued based on recommendation made from the local body based on any slip, receipt or bill mentioning that the victims have been using that land, and if such document is not available, then a public inquiry deed with at least 2 neighbors mentioning that the victim was living and using the land.

- (c) To investigate and forward, with recommendation, those grievances that are recommended to be forwarded to the NRA central office by the ward-level grievances management committee.
- (d) To clear or cause to clear grievances based on decisions made by the Government of Nepal, NRA Steering Committee and NRA Executive Committee, and available procedures.
- (e) To clear grievances that are made against the decisions made at the ward-level grievances management committee.
- (f) To send report, with suggestion, to the NRA mentioning the reasons why certain grievances could not be cleared by the committee.

(11) Grievances Management at the central level: (a) The grievances that have been received at the central level shall be coordinated by the Social Mobilization and Management Division in coordination with the Information and Communication Department as per following:

- (a) To record the grievances with recommendation that have been received from the local level grievances management committee,
- (b) To categorize and sort the grievances received from the NRA and local level agencies,
- (c) To analyze based on the damage matrix, images and other information included in the MIS of NRA and/or any other relevant information.
- (d) Can take advice from experts if needed while making decision as per point (c).
- (e) Including the recommendation, to submit details of the house owners who may or may not be eligible to be included in the beneficiaries list of the reconstruction and retrofitting beneficiary list as per point (c)
- (f) To present in the central grievances management committee meeting if the grievance requires resurvey or examination and verification at the field level.
- (g) To analyze and clear the recommendations received from the local level grievances management committees. To present the issues that cannot be cleared to the central level grievances management committee meeting.
- (h) To implement or cause to implement the decisions made by the executive committee and the central level grievances management committee meetings.
- (i) To present grievances that are related to the NRA, but not to private housing reconstruction, to the NRA Secretary based on the decisions issued by the Government of Nepal, NRA steering committee and NRA executive committee, and the available procedures.
- (j) To send a written letter to the related official or agency or committee for the handling of those grievances that are administrative in nature.
- (k) To forward those grievances that are related to the decisions made by the Rural Municipality/Municipality grievances management committee to the executive committee for clearance.

12. Central level grievances management committee: (1) The formation of the central level grievances committee shall be as following:

- | | |
|---|--------------------|
| (a) Executive committee member appointed by the NRA | - Coordinator |
| (b) Chief of the Grievances Management Division, NRA | - Member |
| (c) Joint Secretary, NRA | - Member |
| (d) Chief of the Information and Communication Section, NRA | - Member |
| (e) Under-Secretary, Social Mobilization and
Grievances Management Section | - Member Secretary |

(2) NRA executive committee member, related expert or officials can be invited in the grievances management committee meeting on need basis.

(3) The tasks, responsibilities and authority of the central level grievances management committee shall be as following:

- (a) Decisions on grievances related to Point 11 (e), (f) and (g) that have been forwarded by the grievances management division shall be made based on the decisions made by the Government of Nepal, NRA steering committee and NRA executive committee, and the approved procedures. If any beneficiary, who has registered a grievance, may be recorded in the beneficiaries list, or if they are moved from the retrofitting beneficiaries list to the housing reconstruction beneficiaries list, and may cause financial obligation, then a recommendation must be presented to the executive committee before make a decision.
- (b) To clear those grievances that have been made to the decisions made by the Rural Municipality/Municipality grievances management committee.